

General Terms and Conditions of Supply and Payment

TROX Austria GmbH

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I Formation of contract

- These General Terms and Conditions of Supply and Payment shall apply to all present and future contracts for goods and other services to be furnished and rendered by us (hereinafter also: “**Seller**”). General terms and conditions of business of our counterparty (hereinafter also: “**Purchaser**”) shall be deemed rejected by us to the extent they conflict with these terms and conditions. The foregoing applies even when we do not expressly object to them.
- Statements made by us shall only be deemed legally binding on us if they have been expressly confirmed in writing by persons holding agency authority from our Company.
- As a basic rule, the Seller’s offers shall be deemed subject to change. Absent any special agreement to the contrary, no contract shall be deemed to be formed until such time as we have issued a written, express order confirmation pursuant to sub-section 2 hereof.
- All details with respect to the Items of Supply, which are presented to the Purchaser in the course of contract negotiations, appear from catalogues forwarded by the Seller to the Purchaser in advance of contract formation or are made available in some other way shall merely be deemed declarations made to the best of our knowledge and do not constitute legally-binding undertakings in the legal sense with respect to characteristics and qualities of the Items of Supply. Any statements with respect to characteristics and qualities of the Items of Supply shall only and exclusively, be legally-binding on us if we have expressly confirmed them in writing pursuant to sub-section 2 hereof.
- The Seller reserves the entirety of all ownership and intellectual property rights with respect to samples, cost estimates, drawings and similar corporeal and incorporeal forms of information (including information disclosed in electronic form); they may not be disclosed to third parties. In addition, the Purchaser undertakes not to disclose any information and documents the Seller has designated as confidential to third parties except with the Seller’s consent.
- Data protection advice:
The Seller hereby advises the Purchaser that it may process and disclose to others the Purchaser’s personal and corporate data through the use of information technology in accordance with the provisions of the Austrian Data Protection Act (German acronym: DSGVO). In this context, certain data (names, addresses, invoice data and non-timely payments by the Purchaser) may be forwarded to credit agencies and/or credit protection associations.

II Prices

- Absent an express agreement to the contrary, our prices are quoted ex works, and include loading of the goods at our works. Quoted prices do not include VAT at the rates prescribed from time to time by law or any further costs such as, in particular, the costs of packaging and unloading.
- Prices quoted for individual items of an offer shall only be valid where the Purchaser issues a confirmed order for the entirety of that offer. Confirmed prices shall only apply where the agreed quantities are accepted by the Purchaser.
- If taxes and duties under public law and other costs (“**External Costs**”) change after the contract has been formed, where such **External Costs** were covered by the agreed price/formed the basis for our cost calculations (irrespective of whether this was express or implicit) and where we have no ability to influence such **External Costs**, or if new **External Costs** arise, then we shall be entitled to amend our prices to a corresponding extent. The Seller shall furnish the Purchaser with evidence of the increase in its costs upon written request of the Purchaser.
- In the event that the above-referenced taxes and duties/**External Costs** change to the advantage of the Purchaser after the contract is formed as per the first sentence of sub-section 3, the Seller is willing to pass on any reduction in cost which has actually occurred on the side of the Seller (relative to the specific contractual relationship) to the Purchaser upon the Purchaser’s express, written request.

III Terms of payment

- Absent an express, written agreement to the contrary, payments are to be settled net upon conclusion of the contract.
- The Purchaser effect payment in such a way that we are able to freely dispose over the funds on the date payment is due. The Purchaser shall bear any bank fees.
- In the event of default, we shall charge at least 8% interest over the base interest rate of the Austrian National Bank, from the date the invoice was due. The foregoing is without prejudice to our right to claim damages exceeding the foregoing suffered by us in consequence of the default.
- Where the Purchaser is in default, the Seller shall, in addition, be entitled to resile from the contract and to demand compensatory damage, as well. Furthermore, the Seller may prohibit the Purchaser in the event of default (even without separately resiling from the contract) from selling the Items of Supply to a third party or from installing it. In the event of default of payment, the Seller shall, furthermore, be entitled to demand return of the Items of Supply at the Purchaser’s cost and expense. The Purchaser hereby authorises the Seller for this purpose now and in advance to access the premises of the Purchaser and to recover the Items of Supply. Recovery of/any demand made for return of the Items of Supply shall not be deemed a rescission of the contract.

- In the case described in sub-sections 3 and 4 hereof, the Seller may demand that the Purchaser make prepayments for goods and services still outstanding in such amount as the Seller may determine. In the event that an irrevocable direct debit authority has been given, that debit authority may also be revoked.
- The legal consequences referenced in sub-sections 3 to 5 hereof may be avoided by the Purchaser if it furnishes collateral in the amount of our claim for payment which is deemed at risk.

IV Execution of deliveries, delivery periods and deadlines

- Our obligation to supply goods and services is subject to correct and timely deliveries to us by any of our upstream suppliers. The Seller shall inform the Purchaser as soon as possible of any potential delays which become apparent.
- The delivery period shall be governed by the express, written agreement made by the parties. If that agreement does not address the delivery period, then the delivery period shall begin to run on the date we have confirmed the order and, for standard Items of Supply, shall be 45 business days. In the event that the Item of Supply is a custom-made product, then the delivery period shall be 90 business days. An item shall, in any event, be deemed to be a ‘custom-made product’ within the meaning of the foregoing if it was necessary to individually adapt or modify the standard Item of Supply to perform the contract (“**specifications**”). The foregoing shall also apply where only minor modifications/adaptations are to be made to a standard Item of Supply.
- However, the commencement of the delivery period shall in any event be subject to the condition precedent that all of the commercial and technical questions existing between the parties have been resolved and the Purchaser has satisfied all obligations incumbent upon it, such as, in particular, any certificates or approvals from authorities which may be necessary, any down-payment which may have been agreed, the furnishing of LOCs or guarantees. However, if the Purchaser is delayed in doing so (i.e. has encountered “**obstacles**”), then the delivery period shall begin to run within a reasonable time after all obstacles have been eliminated.
- In the event of any subsequent modification of the order for the Item of Supply, the Seller shall be entitled to extend the delivery period unilaterally by a reasonable time. To the extent only portions of the order are subsequently modified, the Seller’s rights to extend the delivery period shall, in cases of doubt, be deemed to extend to the entire order.
- The delivery period shall be deemed to have been complied with if the Item of Supply was dispatched from the Seller’s works/warehouse prior to the expiry of the delivery period. If a formal acceptance procedure is required, then (with the exception of well-founded refusals to perform formal acceptance) the agreed formal acceptance date shall govern. In the absence of any party agreement as to such a date, the date the Seller notifies the Purchaser that it is ready to perform formal acceptance (“**Readiness to Perform Formal Acceptance**”) shall be deemed controlling.
- If dispatch/formal acceptance of the Item of Supply is delayed for reasons attributable to the Purchaser, then, beginning one month from the date on which dispatch of the goods/formal acceptance should have taken place (or the date on which the Purchaser received notification of the Seller’s **Readiness to Perform Formal Acceptance**), the costs arising as a result of the Purchaser’s delay shall be charged to the Purchaser. The Seller shall in any event be entitled, without furnishing evidence of damages or any actual expenditures, to demand a reasonable fee from the Purchaser for any storage of the Item of Supply which may have been rendered necessary by the delay.
- Where the Seller’s failure to comply with its delivery period is attributable to force majeure or other circumstances lying outside its control, then the delivery period shall not begin to run until such time as the obstacle has ceased or been eliminated, plus a reasonable lead-time. The foregoing shall also apply where such events occur during an ongoing delay. The following shall be deemed the equivalent of the cases covered by the first sentence hereof: Foreign exchange measures and other sovereign acts, strikes, lock-outs, disruptions to operations for which we do not bear culpability (e.g. fire, breakage of machines and cylinders, shortages of raw materials or energy), disruptions to transport routes, delays in importation/ customs clearance, and all other circumstances which substantially impede our ability to or make it impossible for us to render our supplies of goods and services. It is immaterial whether such circumstances arise within our sphere or that of an upstream supplier.
- If the performance of the contract becomes unreasonable for one of the parties due to the above-referenced events, that party may rescind the contract.
- The Purchaser may resile from the contract without observing any notice period if there has been a conclusive frustration of the Seller’s entire performance of the contract prior to such time as the risk passes to the Purchaser. In addition, the Purchaser may rescind the entire agreement if performance of a portion of the deliveries of goods and services becomes impossible and the Purchaser has a justified interest (of which the Purchaser is or should be aware) in refusing the remaining partial performance the Seller is able to complete. If the Purchaser does not have any such justified interest in refusing such partial performance, then the Purchaser shall be deemed entitled to resile from the contract with

respect to that portion, but the Purchaser’s obligation to pay a share of the purchase price relating to that partial performance shall remain in any case unaffected by the Purchaser’s partial rescission.

- If the impossibility arises during a delay in carrying out formal acceptance, or if the Purchaser is solely or predominately responsible for the circumstances giving rise to the impossibility, then the Purchaser shall in any event remain obliged to perform its side of the contract.
- If the Seller is in default and if the Purchaser suffers losses as a consequence thereof, then the Purchaser shall be entitled from the 2nd week to demand liquidated damages for delay. Such damages shall be 0.5 % for each full week of delay, but to a maximum total of 5 % of the value of the portion of the overall goods and services to be supplied which, as a result of the delay, could not be timely used or used in accordance with the contract. If the Purchaser sets the Seller a reasonable grace period and the Seller fails to perform within such grace period, then, within the scope of what is prescribed by law, the Purchaser shall be entitled to rescind the contract. Further and other claims on the basis of delays in delivery shall be governed by clause VIII hereof.

V Reservation of title

- All goods supplied by us shall remain our property (Reservation of Title Goods), irrespective of the fact that the goods have been delivered and that the risk may have passed to the Purchaser or of any other provisions of these Terms and Conditions of Supply, until such time as the Purchaser has settled all of our claims, including, in particular, any payment balance demands to which we may be entitled within the scope of our business relations. The foregoing shall also apply to receivables arising in future and contingent claims, e.g. from acceptor’s bills of exchange and shall apply even where payments are made in respect of specially designated claims.
- In the event of a breach by the Purchaser, in particular in the event of default of payment, the Seller shall be entitled to recover the Item of Supply after a reasonable grace period it has set has elapsed to no avail and the Purchaser shall, in such case, be obliged to surrender such Items of Supply. A claim for surrender of any such reservation of title property shall not be deemed to be a rescission of the contract.
- In any event, the Seller shall be entitled to resile from the contract with immediate effect where good cause to do so exists. “**Good cause**” shall, in particular, be presumed where the Purchaser has failed to perform its material contractual obligations or where circumstances are present that cause the Purchaser’s proper performance under the contract to appear to be in jeopardy or if the Purchaser ceases business operations or if insolvency proceedings are opened over its assets or if the opening of such proceedings has been dismissed due to a lack of assets in the estate.
- For so long as our claims pursuant to V.1 hereof have not been fully settled, the Purchaser must hold the goods in trust for the Seller and must keep the goods separate from its property and that of third parties, and must properly store, secure and insure the Reservation of Title Goods and label them as the Seller’s property.
- Where the Reservation of Title Goods are combined, processed and commingled with other goods by the Purchaser, we shall acquire a right co-ownership pro rata to the new item of property in the same proportion as the invoiced value of our Reservation of Title Goods bears to the invoice value of the other goods used.
- Where our right of ownership lapses as a result of combining, processing or commingling the goods, you hereby agree that any such combination, processing or commingling shall be deemed to be effected on our behalf, such that we shall become the owners of the new item of property. In the event that we – irrespective of the legal grounds thereof – should fail to become the owners of the new item of goods despite this agreement, you hereby agree that we shall be entitled to ownership of the new item of property, without the need for any separate agreement to such effect. Transfer of physical possession shall be deemed to occur by way of anticipated possession. In the event that – irrespective of the legal grounds thereof – it should be impossible for ownership to the new item of property to pass completely to us, you hereby agree that we shall be equitable co-owners of the new item of property to the extent of the invoiced value of our reservation of title property without the need for any separate agreement on this point. With respect to the form by which possession is surrendered, the foregoing shall apply mutatis mutandis. Both the property itself and the equitable co-ownership shares to items of property shall be deemed “**Reservation of Title Goods**” within the meaning of clause V.1.
- Until such time as the Purchaser has made payment in full, the Purchaser may only use the Reservation of Title Goods and sell the Reservation of Title Goods on to third parties upon its standard terms and conditions of business, subject to clause V.8 hereof, and only for so long as the Purchaser is not in default. However, the Purchaser must keep any and all compensation therefor (including any insurance payments) for the Seller, and must segregate these funds from its other assets and those of their parties. The Purchaser is not entitled to make any other dispositions over the Reservation of Title Goods, even if only by way of collateral.
- The Purchaser may in addition only sell the Reservation of Title Goods if it, in turn, agrees with its purchaser to the imposition of a reservation of title